



Dubai Aerospace Enterprise - Macquarie AirFinance

MN-95011

Phase 1 Determination

Acquisition may be put into effect

4 May 2026

1. Determination and statement of reasons

Notified acquisition	Dubai Aerospace Enterprise (DAE) Ltd (DAE) proposes to acquire 100% of the issued share capital in Macquarie AirFinance Limited (Macquarie AirFinance) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	DAE is a globally active aircraft lessor, headquartered in Dubai. DAE is active in leasing regional, narrow-body and wide-body aircraft to airlines. DAE consists of two divisions: DAE Capital and DAE Engineering. DAE Capital carries out aircraft leasing, aircraft trading and provides aircraft investor services. DAE Engineering, through its subsidiary Joramco, provides regional maintenance repair and overhaul services. Macquarie AirFinance is a globally active aircraft lessor of civil aviation aircraft, headquartered in Dublin. Macquarie AirFinance is primarily active in leasing narrow-body aircraft, and, to a lesser extent, wide-body aircraft to airlines.
Overlap and relationship between the parties	DAE and Macquarie AirFinance overlap in the supply of aircraft dry leases to airlines.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, publicly available information, and feedback from market participants. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • Aggregation in the supply of aircraft dry leases resulting from the Acquisition appears low globally, including into Australia, and the merged entity would likely continue to be constrained by alternative suppliers of aircraft dry leases post-acquisition.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to

	the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**